IRREVOCABLE TRUST AGREEMENT

THE SMITH CHILDREN IRREVOCABLE TRUST

Dated April 12, 2019

Grantors:	John D. Smith III and Jane S. Smith
	1234 Sage Mountain Road, Atlanta, Georgia 30096
Trustee:	Jordan A. Smith
	123 Sage Mountain Road, Atlanta, Georgia 31210
Beneficiaries:	William D. Smith, Emmett P. Smith, Elizabeth E. Smith
Trust EIN:	58-6412093
Situs / Governing Law:	State of Georgia
Type of Trust:	Irrevocable; non-grantor for federal income tax purposes

Prepared by:

HALLORAN & FITCH LLP

Attorneys at Law

1180 Peachtree Street NE, Suite 2400, Atlanta, Georgia 30309

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IRREVOCABLE TRUST AGREEMENT

THIS IRREVOCABLE TRUST AGREEMENT (this "Agreement") is made and entered into as of the 12th day of April, 2019, by and between JOHN D. SMITH III and JANE S. SMITH, husband and wife, each residing in Fulton County, Georgia (individually a "Grantor" and collectively the "Grantors"), and JORDAN A. SMITH, of Bibb County, Georgia (the "Trustee").

RECITALS

A. The Grantors are the parents of three (3) children: WILLIAM D. SMITH, born June 3, 2004; EMMETT P. SMITH, born November 19, 2006; and ELIZABETH E. SMITH, born February 8, 2011 (collectively, the "Children").

B. The Grantors desire to create an irrevocable trust for the benefit of the Children and their descendants, to be known as the SMITH CHILDREN IRREVOCABLE TRUST (the "Trust").

C. The Grantors have transferred, or will contemporaneously herewith transfer, to the Trustee the property described on Schedule A attached hereto, and may from time to time transfer additional property to the Trustee, all of which property, together with the income and proceeds thereof, shall constitute the "Trust Estate."

D. The Trustee is willing to accept the Trust Estate and to hold, administer, and distribute the same in accordance with the terms of this Agreement.

NOW, THEREFORE, in consideration of the premises and the mutual covenants contained herein, the Grantors hereby irrevocably assign, convey, transfer, and deliver the Trust Estate to the Trustee, IN TRUST, upon the following terms and conditions:

ARTICLE I
NAME, PURPOSE, AND TRUST PROPERTY

1.1 Name.

This Trust shall be known as the SMITH CHILDREN IRREVOCABLE TRUST, and it shall be sufficient for purposes of transferring property to the Trust that such property be designated as held by "Jordan A. Smith, Trustee of the Smith Children Irrevocable Trust, u/a/d April 12, 2019."

1.2 Initial Funding.

The Grantors have delivered to the Trustee the property described on Schedule A, receipt of which is hereby acknowledged by the Trustee.

1.3 Additional Contributions.

The Grantors, or any other person, may at any time and from time to time add cash, securities, life insurance policies, interests in closely held entities, or other property acceptable to the Trustee to the Trust Estate, by transfer, assignment, will, or otherwise. All such additions shall be held, administered, and

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distributed pursuant to the terms of this Agreement.

1.4 Purpose.

The primary purpose of this Trust is to provide for the health, education, maintenance, and support of the Children, and to permit the orderly transfer of family wealth to the Children and their descendants in a manner consistent with the Grantors' estate and gift tax planning objectives.

ARTICLE II
IRREVOCABILITY

2.1 Irrevocable.

This Agreement and the Trust created hereunder are irrevocable. The Grantors expressly waive and relinquish any and all rights and powers, whether alone or in conjunction with others, to alter, amend, revoke, or terminate this Agreement or the Trust, in whole or in part, or to change any of the beneficial interests herein.

2.2 No Retained Interest.

No part of the Trust Estate or the income therefrom shall ever revert to, or be held or used for the benefit of, either Grantor, or be applied toward the discharge of any legal obligation of either Grantor, including any obligation of support. Neither Grantor shall serve as Trustee at any time.

2.3 Limited Administrative Amendment.

Notwithstanding Section 2.1, the Trustee may amend the administrative provisions of this Agreement solely to the extent necessary to (a) comply with changes in applicable law, (b) preserve the intended federal income, gift, estate, or generation-skipping transfer tax treatment of the Trust, or (c) correct a scrivener's error, provided that no such amendment shall alter the beneficial interests created hereunder.

ARTICLE III
BENEFICIARIES AND SEPARATE SHARES

3.1 Beneficiaries.

The beneficiaries of this Trust are the Children and their respective descendants. As of the date of this Agreement, the Children are WILLIAM D. SMITH, EMMETT P. SMITH, and ELIZABETH E. SMITH. Any child born to or legally adopted by the Grantors after the date of this Agreement shall be included as a Child for all purposes hereunder.

3.2 Separate Shares.

The Trustee shall divide the Trust Estate into as many equal separate shares as there are Children then living, and shall maintain one such share for the benefit of each Child. Each separate share shall be administered as a distinct trust for purposes of distribution, accounting, and taxation, although the Trustee may, in its discretion, hold the separate shares in a single consolidated account for investment and administrative convenience, maintaining appropriate records of each share's proportionate interest.

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3.3 Deceased Child.

If a Child dies before complete distribution of his or her separate share, the remaining balance of such share shall be distributed to such Child's then-living descendants, per stirpes, or if there are none, shall be added proportionately to the separate shares of the surviving Children.

ARTICLE IV
WITHDRAWAL RIGHTS

4.1 Right of Withdrawal.

Upon each contribution to the Trust, each Child (or the Child's legal or natural guardian if the Child is a minor or is otherwise incapacitated) shall have the right to withdraw from the Trust an amount equal to the lesser of (a) such Child's pro rata share of the contribution, or (b) the maximum amount that qualifies for the federal gift tax annual exclusion under Section 2503(b) of the Internal Revenue Code of 1986, as amended (the "Code").

4.2 Notice.

The Trustee shall give prompt written notice to each Child, or to the guardian of a minor Child, of each contribution to the Trust and of the withdrawal right created thereby. The Trustee shall maintain a record of all such notices as part of the permanent records of the Trust.

4.3 Lapse.

Each withdrawal right shall lapse thirty (30) days after the date notice is given, provided that no withdrawal right shall lapse in any calendar year to the extent such lapse would exceed the greater of Five Thousand Dollars ($5,000) or five percent (5%) of the value of the Trust Estate as of the date of lapse. Any portion not so lapsed shall carry forward and lapse in the earliest succeeding year in which it may lapse without exceeding such limitation.

4.4 Satisfaction.

The Trustee may satisfy any exercised withdrawal right in cash or in kind, and shall retain sufficient liquid assets, or the power to borrow against Trust assets, to satisfy withdrawal rights as they may be exercised.

ARTICLE V
DISTRIBUTIONS DURING THE TERM OF THE TRUST

5.1 Discretionary Distributions.

The Trustee may distribute to or for the benefit of a Child so much of the net income and principal of such Child's separate share as the Trustee, in its sole and absolute discretion, deems advisable for such Child's health, education, maintenance, and support in his or her accustomed manner of living. Undistributed net income shall be accumulated and added to principal at least annually.

5.2 Education.

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In exercising the discretion granted in Section 5.1, the Trustee shall give primary consideration to the educational needs of each Child, including tuition, fees, books, room and board, and reasonable living expenses incurred in connection with attendance at any secondary school, college, university, graduate or professional school, or vocational or technical training program.

5.3 Unequal Distributions.

The Trustee is not required to make equal distributions among the Children, and may make distributions to one or more Children to the exclusion of others, provided that distributions to any Child shall be charged solely against that Child's separate share. The Trustee shall have no duty to equalize the separate shares.

5.4 Other Resources.

In determining whether to make a distribution, the Trustee may, but need not, consider other income, assets, and resources reasonably available to a Child, and the Trustee shall incur no liability for any reasonable determination made in this regard.

ARTICLE VI
DISTRIBUTION OF PRINCIPAL AND TERMINATION

6.1 Staged Distributions.

Upon a Child attaining the following ages, the Trustee shall distribute to such Child, free of trust, the following portions of such Child's separate share:

(a) Age twenty-five (25): one-third (1/3) of the then-remaining principal;

(b) Age thirty (30): one-half (1/2) of the then-remaining principal; and

(c) Age thirty-five (35): the entire then-remaining balance of the separate share, whereupon such separate share shall terminate.

6.2 Deferral for Cause.

Notwithstanding Section 6.1, if the Trustee determines in good faith that a distribution to a Child would be materially adverse to such Child's interests by reason of substance dependency, pending litigation, creditor claims, marital dissolution proceedings, or legal incapacity, the Trustee may defer such distribution until the condition giving rise to the deferral has been resolved, and shall document the basis for such deferral in writing.

6.3 Rule Against Perpetuities.

Notwithstanding any other provision hereof, no trust created under this Agreement shall continue beyond the maximum period permitted under O.C.G.A. § 44-6-201 et seq., and any trust then remaining shall terminate and be distributed to the persons then entitled to receive the income thereof, in the proportions in which they are then entitled to receive such income.

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ARTICLE VII
TRUSTEE PROVISIONS

7.1 Initial Trustee.

JORDAN A. SMITH shall serve as the initial Trustee of this Trust and of each separate share created hereunder.

7.2 Successor Trustees.

If JORDAN A. SMITH is unable or unwilling to serve or to continue to serve as Trustee, then MARGARET E. CALDWELL shall serve as successor Trustee. If MARGARET E. CALDWELL is unable or unwilling to serve, then the then-serving Trustee, or if none, a majority of the adult Children, may appoint as successor Trustee any bank or trust company qualified to conduct trust business in the State of Georgia and having capital, surplus, and undivided profits of not less than One Hundred Million Dollars ($100,000,000).

7.3 Resignation and Removal.

Any Trustee may resign upon thirty (30) days' written notice to the adult Children and to the guardian of any minor Child. A majority of the adult Children may remove any corporate Trustee, with or without cause, upon thirty (30) days' written notice, provided that a qualified successor Trustee is appointed and accepts such appointment.

7.4 Bond; Compensation.

No Trustee shall be required to furnish bond or other security in any jurisdiction. Any individual Trustee may receive reasonable compensation for services rendered; any corporate Trustee shall be compensated in accordance with its published fee schedule in effect from time to time.

7.5 Successor Liability.

No successor Trustee shall be liable for any act or omission of any predecessor Trustee, and no successor Trustee shall have any duty to examine or audit the accounts or administration of any predecessor Trustee.

ARTICLE VIII
POWERS OF THE TRUSTEE

8.1 General Powers.

In addition to all powers conferred by the Georgia Trust Code, O.C.G.A. § 53-12-1 et seq., and by other applicable law, the Trustee shall have the following powers, exercisable in the Trustee's sole discretion and without order of or report to any court:

(a) To retain, invest in, and reinvest in every kind of property, real, personal, or mixed, and every kind of investment, including but not limited to corporate obligations of every kind, preferred and common stocks, exchange-traded funds, mutual funds, private funds, partnership interests, and

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interests in closely held business entities, without regard to any law limiting the investments of fiduciaries;

(b) To open, maintain, and close accounts of any kind with any bank, broker-dealer, custodian, or other financial institution, in the name of the Trust or in the name of a nominee, and to execute and deliver all account agreements, custody agreements, margin and options agreements, subscription documents, transfer instructions, and related documentation as the Trustee deems necessary or appropriate;

(c) To engage one or more investment advisers, including any investment adviser registered under the Investment Advisers Act of 1940, and to delegate to any such adviser discretionary authority over all or any portion of the Trust Estate, to execute investment advisory agreements on behalf of the Trust, and to authorize the payment of advisory fees from Trust assets; the Trustee shall not be liable for the acts or omissions of any adviser so engaged, provided the Trustee exercised reasonable care in selecting and periodically reviewing such adviser;

(d) To sell, exchange, lease, pledge, mortgage, or otherwise dispose of any Trust property, at public or private sale, for cash or on credit, and upon such terms as the Trustee deems advisable;

(e) To borrow money from any source, including any Trustee individually, and to secure such borrowing by pledge or mortgage of Trust property;

(f) To vote securities in person or by proxy, to participate in reorganizations, mergers, and consolidations, and to exercise all rights incident to the ownership of securities;

(g) To hold property in bearer form or in the name of a nominee, without disclosing the fiduciary relationship, provided that the Trustee's records at all times reflect the Trust's ownership;

(h) To employ and compensate attorneys, accountants, custodians, appraisers, and other agents, and to pay their reasonable fees from income or principal;

(i) To make distributions in cash or in kind, or partly in each, and to allocate specific assets among separate shares on a non-pro-rata basis, using values determined as of the date of distribution; and

(j) To execute and deliver any and all instruments, and to take any and all actions, necessary or appropriate to carry out the foregoing powers and the purposes of this Trust.

8.2 Reliance by Third Parties.

Any bank, broker-dealer, custodian, transfer agent, or other third party dealing with the Trustee may rely upon a certification of trust executed by the Trustee pursuant to O.C.G.A. § 53-12-280, and shall be under no duty to inquire into the terms of this Agreement, the authority of the Trustee, or the application of any funds or property delivered to the Trustee.

8.3 Minor or Incapacitated Beneficiaries.

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The Trustee may make any distribution to a minor or incapacitated beneficiary (a) directly to such beneficiary, (b) to the legal or natural guardian of such beneficiary, (c) to a custodian under the Georgia Transfers to Minors Act, or (d) by direct application for such beneficiary's benefit. The receipt of any such person shall constitute a full discharge of the Trustee.

ARTICLE IX
SPENDTHRIFT PROVISION

9.1 Spendthrift.

No interest of any beneficiary in the income or principal of the Trust shall be subject to anticipation, assignment, pledge, sale, or transfer in any manner, nor shall any beneficiary have the power to anticipate, encumber, or charge such interest. No interest shall be liable for or subject to the debts, contracts, obligations, liabilities, or torts of any beneficiary, or to any claim of any creditor, spouse, or former spouse of any beneficiary. This Section constitutes a spendthrift provision within the meaning of O.C.G.A. § 53-12-80.

ARTICLE X
TAX PROVISIONS

10.1 Non-Grantor Trust.

It is the intent of the Grantors that this Trust be treated as a separate taxable entity for federal income tax purposes and that neither Grantor be treated as the owner of any portion of the Trust under Sections 671 through 679 of the Code. This Agreement shall be construed, and the Trustee shall administer the Trust, in a manner consistent with such intent. The Trust shall obtain and maintain its own taxpayer identification number and shall file such returns as are required by law.

10.2 Generation-Skipping Transfer Tax.

The Trustee shall have the authority to make, or to refrain from making, any allocation of the Grantors' generation-skipping transfer tax exemption under Section 2631 of the Code, and to divide any trust into separate trusts having inclusion ratios of zero and one, respectively, in order to preserve the benefit of any such exemption.

10.3 Tax Elections.

The Trustee may make any election available under federal or state tax law, including elections under Section 663(b) of the Code, without any obligation to make compensating adjustments among beneficiaries or between income and principal.

ARTICLE XI
GENERAL PROVISIONS

11.1 Governing Law and Situs.

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This Agreement and the Trust created hereunder shall be governed by, and construed and administered in accordance with, the laws of the State of Georgia. The initial situs of the Trust shall be Fulton County, Georgia. The Trustee may transfer the situs of the Trust to any other jurisdiction if the Trustee determines such transfer to be in the best interests of the beneficiaries, and upon such transfer the law of the new situs shall govern administration.

11.2 Accountings.

The Trustee shall render an accounting to each adult beneficiary, and to the guardian of each minor beneficiary, not less frequently than annually. The written approval of an accounting by all such persons shall be binding upon all persons then or thereafter interested in the Trust.

11.3 Definitions.

(a) "Child," "children," and "descendants" include persons legally adopted before attaining age eighteen (18) and their descendants.

(b) A beneficiary shall be deemed "incapacitated" upon the written certification of two (2) licensed physicians that such beneficiary is unable to manage his or her financial affairs.

(c) "Code" means the Internal Revenue Code of 1986, as amended, and any corresponding provisions of succeeding law.

11.4 Severability.

If any provision of this Agreement is held invalid or unenforceable, such holding shall not affect the remaining provisions, which shall continue in full force and effect.

11.5 Counterparts.

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

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IN WITNESS WHEREOF, the Grantors and the Trustee have executed this Agreement as of the day and year first above written.

GRANTOR:

_____

JOHN D. SMITH III

GRANTOR:

_____

JANE S. SMITH

TRUSTEE:

_____

JORDAN A. SMITH

ACCEPTANCE BY TRUSTEE

The undersigned hereby accepts appointment as Trustee of the Smith Children Irrevocable Trust, acknowledges receipt of the property described on Schedule A, and agrees to hold, administer, and distribute the Trust Estate in accordance with the terms of this Agreement.

_____

JORDAN A. SMITH, Trustee

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STATE OF GEORGIA

COUNTY OF FULTON

On this 12th day of April, 2019, before me personally appeared JOHN D. SMITH III, JANE S. SMITH, and JORDAN A. SMITH, known to me or satisfactorily proven to be the persons whose names are subscribed to the foregoing instrument, and each acknowledged that he or she executed the same for the purposes therein contained.

_____

Notary Public, State of Georgia

My commission expires: October 4, 2022

WITNESSES:

_____ _____

Rebecca L. Ainsworth Peter M. Nakagawa

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SCHEDULE A

Initial Trust Property

The Grantors have transferred to the Trustee, and the Trustee acknowledges receipt of, the following property, to be held pursuant to the terms of the Smith Children Irrevocable Trust Agreement dated April 12, 2019:

Item	Description	Value
1.	Cash	$10.00
2.	Cash contribution, April 15, 2019	$45,000.00
3.	1,200 shares of common stock, Sage Mountain Holdings, Inc.	$186,000.00
	Total Initial Trust Property	**$231,010.00**

Custodial account established with Goldman Sachs & Co. LLC, Portfolio No. XXX-XX000-2, in the name of the Smith Children Irrevocable Trust.

_____

JORDAN A. SMITH, Trustee

Date: April 12, 2019

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